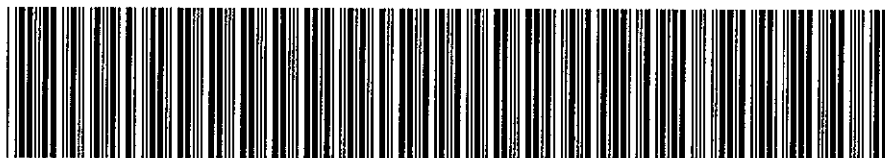


EWR D&I ANNOTATION



FAN-000001L092001DP93-2133

Artemis # : 000001L092001DP93

Record Created Date :

Printed Date : 06/17/2010

Description : DI09-096, SEQ ID 93, 2009 Q2, DRIVER OF A 2007 COBALT WAS TRYING TO MAKE A QUICK TURN AND LOST CONTROL, DRIVER HIT A PARKED CAR WITH THE RIGHT SIDE OF THE VEHICLE. DRIVER BELIEVES AIR BAGS SHOULD HAVE DEPLOYED. NO SPEED NOTED. POLICE REPORT NOT GIVEN. SEARCHED 2005-2007, VOQ-37, PURSUIT-0 (1 FOR 2006). TSB-0, RECALLS-0, *RM

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

1200 New Jersey Avenue SE.
Washington, DC 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

December 16, 2009

Ms. Gay P. Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217kb
DI09-096

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors Corp. (GM) in its light early warning report from 2nd quarter of 2009. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 3, 7, 15, 39, 63, 78, 81, 82, 85, 87, 88, 89, 90, 91, 92, 93, 94, 95, 96, 98, 100, 101, 103, 105, 106, 107, 108, 109, 110, 131, 137, 145, 146, 148, 149, 158, 167, 168, 178, 209, 216, 219, 231, 243, 253, 254, 255, 256, 257, 258, 259, 261, 263, 264, 266, 270, 271, 276, 281, 282, 288, 289, 290, 291, 292, 293, 297, 299, 300, 311, 312, 327, 338, 339, 341, 343, 344, 345, 346, 348, 349, 351, 352, 354, 370, 382, 390, 391	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the above table.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM's custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, 1200 New Jersey Avenue, S.E., Washington, D.C. 20590. GM is required to submit two copies of the documents containing allegedly confidential information (except only one copy of blueprints) and one copy of the documents from which information claimed to be confidential has been deleted. Please remember that the words "CONFIDENTIAL BUSINESS INFORMATION" must appear at the top of each page containing information claimed to be confidential, and the information must be clearly identified in accordance with 5 U.S.C. § 512.6. If you submit a request for confidentiality for all or part of your response to this letter, that is in an electronic format (e.g., CD-ROM), your request and associated submission must conform to the new

requirements in NHTSA's Confidential Business Information Rule regarding submissions in electronic formats (49CFR 512.(c)). See Federal Register, volume 72, page 59434 (October 19, 2007).

12660

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **January 22, 2010**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS LLC
Global Interior and Safety Center

11 February 2010

Ms. Christina Morgan, Chief
Early Warning Division, NVS-217
Office of Defects Investigation
National Highway Traffic Safety Administration
1200 New Jersey Ave., S.E.
Washington, DC 20590

NVS-217kb
DI09-096

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated December 16th, 2009 regarding certain death and injury incidents reported by GM in its light vehicle early warning report from the 2nd quarter of 2009.

GM's response is comprised of 88 disks for the incidents that are the subject of DI09-096.

Attachment "A" includes instructions for navigating the disk. Each disk, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 3 18605620-675350 and 2009 BUICK ENCLAVE. When the disk is launched, this identification number appears again along with all of the documents on the disk (including photographs and videos, if applicable) listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 3 18605620-675350_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the Inquiry and Response in the index
for the disk are as follows:

DI09-096
3 18605620-675350
2009 BUICK ENCLAVE

Request for Information:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**



Response: See attached document.

2. **Provide a copy of the Police Accident Report.**

Response: See attached documents and photographs.

The remaining document listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

- 3 18605620-675350 **_01_001** - is the first document responsive to Inquiry no. 1.
- 3 18605620-675350 **_02_001** - is the first document responsive to Inquiry no. 2.

Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See attached document.

The table below lists the incident that is the subject of DI09-066, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR) or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further.

<i>(88 Vehicles from the Light Vehicle Template)</i>		
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
3	5GAER23D69J [REDACTED]	NISM
7	UNKNOWN	NISM
15	5GADS13S142 [REDACTED]	NISM
39	1G6DU57V090 [REDACTED]	LIT
63	UNKNOWN	NISM
78	1G1AL52F957 [REDACTED]	NISM
81	1G1AK52F257 [REDACTED]	NISM
82	1G1AK55F167 [REDACTED]	NISM
85	1G1AK15F467 [REDACTED]	NISM
87	1G1AK55F267 [REDACTED]	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
88	1G1AM15B367	NISM
89	1G1AL15FX67	NISM
90	1G1AK15F367	NISM
91	1G1AL58F977	NISM
92	1G1AK15F077	NISM
93	1G1AK55F577	NISM
94	1G1AK15F477	NISM
95	1G1AK55F577	LIT
96	1G1AK15F077	NISM
98	1G1AK58FX77	NISM
100	1G1AK55FX77	NISM
101	1G1AK15F477	NISM
103	1G1AK18F887	NISM
105	1G1AL58F287	NISM
106	1G1AK18F187	NISM
107	1G1AL58F987	NISM
108	1G1AK58F987	NISM
109	1G1AL58F987	NISM
110	1G1AT58H097	NISM
131	3GNDA23P76S	NISM
137	3GNDA13D48S	NISM
145	2G1WF52E049	NISM
146	2G1WF52E249	NISM
148	2G1WH52K049	NISM
149	2G1WH52K049	NISM
158	2G1WT58N279	NISM
167	2G1WT57K791	NISM
168	2G1WC57M591	NISM
178	1G1ZG57B39F	NISM
209	1GCEK24009Z	NISM
216	1GCHK29K57E	NISM
219	1GBJC34K78E	NISM
231	1GNFC16047J	NISM
243	1GNFK33059R	NISM
253	1GNDS13S642	NISM
254	1GNDT13S052	NISM
255	1GNDT13S052	NISM
256	1GNDS13SX52	NISM
257	1GNDT13S852	NISM
258	1GNDT13S052	NISM
259	1GNDT13S352	NISM
251	1GNDT13S662	NISM
263	1GNDT13S682	NISM
264	1GNDT13S882	NISM
266	1GNDS33S892	NISM
270	1GNES16S866	NISM
271	1GNEV23D29S	NISM

SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)	TYPE
276	1GNDU03E64D [REDACTED]	NISM
281	1GKEV23D59J [REDACTED]	NISM
282	1GKEV23D99J [REDACTED]	NISM
288	UNKNOWN	NISM
289	1GKDS13S442 [REDACTED]	NISM
290	1GKDT13S442 [REDACTED]	NISM
291	1GKDT13S552 [REDACTED]	NISM
292	1GKDS13S962 [REDACTED]	NISM
293	1GKDS13S462 [REDACTED]	NISM
297	1GKET16S956 [REDACTED]	NISM
299	1GKES12S046 [REDACTED]	NISM
300	1GKES12S956 [REDACTED]	NISM
311	3GTEC13C48G [REDACTED]	NISM
312	3GTEK13378G [REDACTED]	NISM
327	5GTDN136568 [REDACTED]	NISM
338	1G2ZF55B264 [REDACTED]	NISM
339	1G2ZF55B064 [REDACTED]	NISM
341	1G2ZG558364 [REDACTED]	NISM
343	1G2ZH18N374 [REDACTED]	NISM
344	1G2ZG58B574 [REDACTED]	NISM
345	1G2ZH57N584 [REDACTED]	NISM
346	1G2ZG57B384 [REDACTED]	NISM
348	1G2ZH57N684 [REDACTED]	NISM
349	1G2ZF57B584 [REDACTED]	NISM
351	1G2ZJ57B494 [REDACTED]	NISM
352	1G2ZH36N994 [REDACTED]	NISM
354	6G2EC57Y19L [REDACTED]	NISM
370	2G2WP552881 [REDACTED]	NISM
382	5S3ET13S662 [REDACTED]	NISM
390	5GZER13737J [REDACTED]	NISM
391	5GZEV23748J [REDACTED]	NISM

2. Provide a copy of the Police Accident Report.

Response: If available, see attached document(s) and photograph(s) on the enclosed disk(s).

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators and engineers working at the request of attorneys). GM is producing

responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

A handwritten signature in black ink, appearing to read "G. Kent", written in a cursive style.

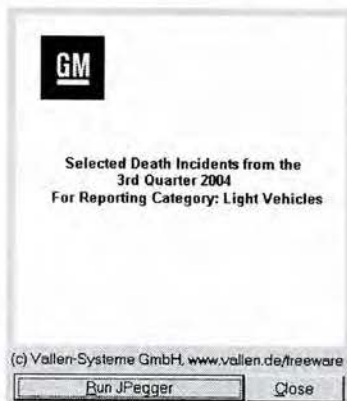
Gay P. Kent,
Director, Product Investigations
and Safety Regulations

Enclosures: 88 Disks
Attachment A

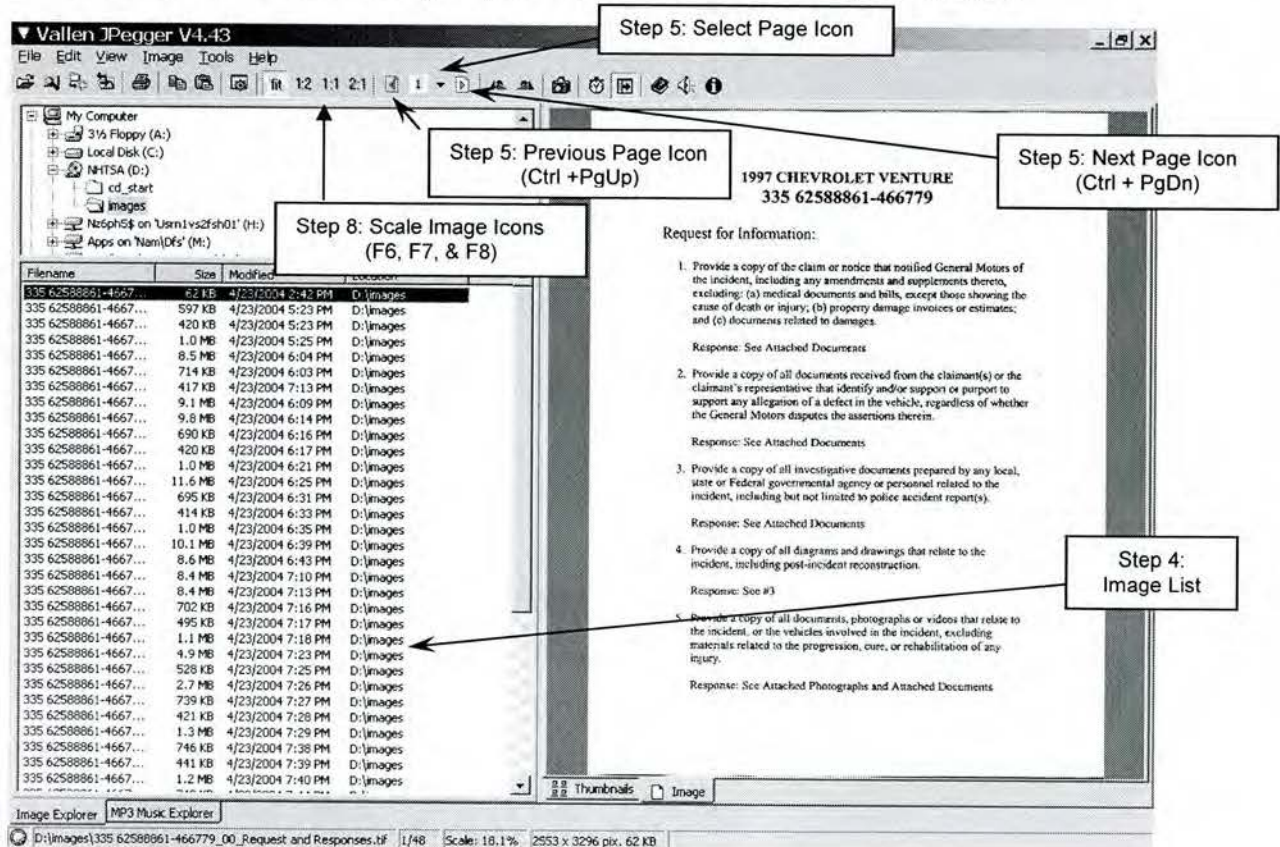
Attachment A

Instructions for using Disk Viewer

1. Insert the disk into the disk ROM drive; the disk will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



5. Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl + PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl + PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
6. By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl + PgDn** or **Ctrl + PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
7. Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
8. If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

982.2(b)(1)

ATTORNEY OR PARTY-RELATED ATTORNEY FIRM, with an address and e-mail address
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 381 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 TELEPHONE NO. 909-469-5127 FAX NO. 909-469-5126
 ATTORNEY FOR PLAINTIFF'S

WEST NAME OF COURT: SUPERIOR COURT, COUNTY OF SAN BERNARDINO, IF ANY
 SUPERIOR COURT FOR THE STATE OF CALIFORNIA
 INDIO COUNTY

CASE NAME: CARDONA V. CHEVROLET

CIVIL CASE COVER SHEET
☐ Limited ☒ Unlimited

Complex Case Designation
☐ Counter ☐ Joinder
 Filed with first appearance by defendant
 (Cal. Rules of Court, rule 1811)

CASE NUMBER:
 ASSIGNED JUDGE:

Please complete all five (5) items below.

1. Check one box below for the case type that best describes this case:

☒ Auto Tort (22)
☐ Other PIP/DWD (Personal Injury/Property Damage/Wrongful Death) Tort
☐ Assisted (24)
☐ Product liability (24)
☐ Medical malpractice (45)
☐ Other PIP/DWD (23)
☐ Non-PIP/DWD (Other) Tort
☐ Business tort/unfair business practice (37)
☐ Child rights (e.g., discrimination, false arrest) (55)
☐ Defamation (e.g., slander, RAD) (13)
☐ Fraud (18)
☐ Intellectual property (19)
☐ Professional negligence (e.g., legal malpractice) (25)
☐ Other non-PIP/DWD tort (26)
☐ Employment
☐ Wrongful termination (36)
☐ Contract
☐ Breach of contract/warranty (46)
☐ Collection (e.g., money owed, open book accounts) (39)
☐ Insurance coverage (14)
☐ Other contract (37)
☐ Real Property
☐ Eminent domain/condemnation (14)
☐ Wrongful eviction (33)
☐ Other real property (e.g., quiet title) (28)
☐ Unlawful Detainer
☐ Commercial (31)
☐ Residential (32)
☐ Drugs (34)
☐ Juvenile Delinquency
☐ Asset forfeiture (26)
☐ Petition re: arbitration award (11)
☐ Will of decedent (52)
☐ Other probate matter (37)
☐ Provisionally Complex Civil Litigation (Cal. Rules of Court, rules 188a-1812)
☐ Antitrust/Trade regulation (33)
☐ Construction defect (10)
☐ Claims insurance monies tort (33)

2. This case ☒ is ☐ is not complex under rule 1800 of the California Rules requiring nonpartisan judicial management:
 a. ☒ Large number of separately represented parties b. ☐ Large number of c. ☐ Coordination on issues that will be time-consuming to resolve d. ☐ Large number of e. ☐ Coordination on issues that will be time-consuming to resolve f. ☐ Substantial post

3. Type of remedies sought (check all that apply):
 a. ☒ Monetary b. ☐ Nonmonetary, declaratory or injunctive relief c. ☐

4. Number of causes of action (specify): FIVE

5. This case ☐ is ☒ is not a class action suit.
 Date: JULY 3, 2003
 ERIC D. PARIS, ESQ., S/B# 147836
 (Print on next page)

NOTICE
 • Plaintiff must file this cover sheet with the first paper filed in the action or proceeding (ex. under the Probate, Family, or Welfare and Institutions Code) (Cal. Rules of Court, rule 1811).
 • File this cover sheet in addition to any cover sheet required by local court rule.
 • If this case is complex under rule 1800 of the California Rules of Court, you must file other papers to the action or proceeding.
 • Unless this is a complex case, this cover sheet shall be used for statistical purposes only.

From Integrated for Mandatory Use
 Superior Court of California
 982.2(b)(1) (Rev. January 1, 2008)

CIVIL CASE COVER SHEET

Next Image
 Previous Image
 Next page Ctrl+PgDn
 Previous page Ctrl+PgUp
 Full screen image Ctrl+F11
 Slide show F10
 Fit Scale to fit F5
 Scale 50% F6
 Scale 100% F7
 Scale 200% F8
 Rotate left Ctrl+Alt+L
 Rotate right Ctrl+Alt+R
 Rotate by 180°
 Copy to clipboard
 Copy file to... Ctrl+C
 Move file to... Ctrl+X
 Rename file... F2
 Delete file... Del
 Export Image Information...
 Preferences... Ctrl+H

Step 7: Next File (Image)

Step 7: Next page

Step 8: Scale Image

Step 7: Image Properties

DI09-096
93 18605610 – 675333
2007 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Documents.

2. Provide a copy of the Police Accident Report.

Response: None.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: GM opts not to respond.

Service Request Detail

SR No. (b) (6)	Ref No.	Goodwill	No Goodwill Offered	BRC Type	PAR
Account	Site	GW SubType		Bus. Unit	BRC
Last Name	First Name	Approval	Not Initiated	Area	PAR
Daytime #	Evening #	UCC	Restraints - (SIR) - Driver Front	Sub-Area	Initiate PAR- Injury
Address	City South Gate	Involved Dir		Safety	Yes
State CA ZipCd	Con Acct	Source	Phone	Updated	6/23/2009 12:05:57 PM
Serial #/VIN 1G1AK55F57	Model Year 2007	Priority	Medium License # CHEVROL	Owner	MERCADTO
Make Chevrolet	Warr. Start 05/28/2007	Status	Open	Opened	6/16/2009 11:24:29 AM
Model Cobalt	Mileage 60000	Sub-Status	Dissatisfied	Closed	
Abstract	Restraints - (SIR) - Driver Front (Non Deployment)				
Customer Description	This is a BRC PAR File. Please do not Assume. DO NOT ADVISE. Forward all inquiries to Tonie Mercado @ ext 41183				

Pre-PAR

PAR Notifier	Incident Date/Time	Injuries	# Other Veh	# People in Veh	Road Surface	Road Cond.	Fire Report#	Police Report#
Owner	6/14/2009 02:30:00 AM	Y	1	3	Asphalt	Dry	N/A	# Unavail
Driver Last Name	Driver First Name	Height	DOB	Disabilities				
		5'5"		N/A				
Insurance Agent Last Name	Insurance Agent First Name	Phone #	Insurance Agency					
Unknown	Luz	(800) 754-8135	Slate Farm Insurance					
Incident Loc	Downey CA lakewood almost at the corner of lakewood and studengray				Incident Desc	He was driving west on Stuedengray and he missed a turn, when he tried to make a quick turn he lost control of the steering wheel he hit a parked car with the right side of my vehicle.		
Component	SIR				Damage Desc	the front wheel is gone, the whole right side is smashed against the windshield		
Vehicle Loc	Southgate CA				Add'l Info	Cust doesn't know ANY info of the passenger in the vehicle		
Emergency Svc Names	Downey CA Police Dept				Maint Loc	n/a		

PAR Detail

Collision	Y	Non Collision	Property Damage	N	Thermal Evt	N	Spec Equip	None
Vehicle Speed	40		Weather Condition	Clear / dry			Prop Owner	n/a
Last Service Date			Loc Last Service				Property Location	n/a
Veh Est Repair Cost	\$0.00		Spec Equip Installer	n/a			Prop Damage Description	n/a
Primary Veh Use	Personal		Inspection Type	Restraint System SIR/Seat Belt			Inspected By	Inspection Not Performed
Veh Damage Description	Passenger front, headlight broken, the passenger side is pushed back the fender is pushed back almost the fire wall						Inspection Date/Time	
					Explain Other	File going to ESIS		

Service Request Detail

PAR Injuries

Last Name	First Name	DOB	Location	Phone #	Seating Pos	Restraint Type
			Occupant of Owner's Vehicle		Driver	Seatbelt
Injury Description			Medical Rpt#		Treatment Location	Treated By
Neck and back pain			n/a		La Libertad Medical Clinic	Unknown
Street Address			City	State	Zip Code	
			South Gate	CA		
Last Name	First Name	DOB	Location	Phone #	Seating Pos	Restraint Type
Mr			Occupant of Owner's Vehicle		Front Passenger	Seatbelt
Injury Description			Medical Rpt#		Treatment Location	Treated By
Broken nose			Unknown		Unknown	Unknown
Street Address			City	State	Zip Code	

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/23/2009 12:09:00 PM	MARTIRAM	ESISBIQU	Escalation	ESIS - Injuries	In Progress		injuries
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							
injuries							
Confidential Comments							

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/22/2009 03:54:30 PM	MERCADTO	MERCADTO	Inbound Call Customer	Voice Mail Received	Done	6/22/2009 03:54:59 PM	called in
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							
Cust sts: re: regarding my wife's vehicle. 71-733515161. Just returning a call in regards to collision sent 6/22 126pm est							
Tonia Mercado/PAR/ATX							
Confidential Comments							

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/22/2009 02:46:58 PM	KINZERTH	MARTIRAM	Notify CRM		Done	6/23/2009 12:08:58 PM	ESIS - Injuries
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/22/2009 02:18:35 PM	MERCADTO	MERCADTO	Scheduled Follow-up		Scheduled Alarm		ESIS
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/22/2009 02:17:18 PM	MERCADTO	KINZERTH	BRC PAR	ESIS- Injuries	Done	6/22/2009 02:46:56 PM	Escalating to ESIS
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Customer alleging non deployment

Customer's son was in a collision and sustained some neck and back pain injuries that he went to the Dr. for. Also the passenger in the vehicle may have sustained a broken nose however customer doesn't have ANY of the passengers information

Tonie Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/22/2009 01:57:34 PM	MERCADTO	MERCADTO	Inbound Call Customer	Complex Request	Done	6/22/2009 02:15:23 PM	
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Cust sts: I was calling you about my case.

Crs Adv: verified pre par and par detail information.

cust sts: He was driving west on Stuedengray and he missed a turn, when he tried to make a quick turn he lost control of the steering wheel he hit a parked car with the right side of my vehicle.

Crs Adv: described the operation of the air bags.

Crs Adv: Can you give me information on the other occupant that was in the vehicle.

Cust sts: I don't even know that kid and my son didn't either. He just met him a couple of days prior. All I know is his name is [REDACTED] and that he may have broken his nose.

Crs Adv: do you know if he was treated.

Cust sts: no I don't know.

Crs Adv: At this time I will be forwarding your file to our central claim office for further handling. Someone from that office will be in contact w/ you w/ 7-10 business days. If you don't hear from someone by the end of that time frame please give me call back and I will assist you in getting in contact w/ them

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/22/2009 12:59:12 PM	BURCHAM	MERCADTO	Notify CRM		Done	6/22/2009 01:56:52 PM	Letter Approved
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/22/2009 12:58:59 PM	BURCHAM	KINZERTH	Final Approval	Letter (Non Goodwill)	Done	6/22/2009 12:59:11 PM	Letter Approved
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/19/2009 04:34:32 PM	MERCADTO	MERCADTO	Scheduled Follow-up		Done	6/22/2009 02:16:24 PM	10 Day
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							

sched to close June 29

6/25

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/19/2009 04:33:33 PM	MERCADTO	KINZERTH	Submit for Approval	Letter (Non Goodwill)	Done	6/22/2009 12:58:57 PM	10 Day
Contact Last Name	Contact First Name		Account		BAC Code		
Comments							

Attempted to reach customer

6/18 516pm est

6/19 1130am est and 430pm est

Tonie Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/19/2009 04:32:26 PM	MERCADTO	MERCADTO	Correspondence		Done	6/19/2009 04:32:26 PM	Created:BRCPAR_PA0005, SR#71-733615161

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/19/2009 04:27:38 PM	MERCADTO	MERCADTO	Outbound Call Customer	Left Message	Done	6/19/2009 04:30:55 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Crs Adv: This is Tonie Mercado calling from the GM Product Allegation Dept. I have received your file and do require further information. Please give me a call when you get achance. Provided contact info and SR

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/19/2009 11:59:23 AM	MERCADTO	MERCADTO	Scheduled Outbound Call	Final Attempt	Done	6/19/2009 04:31:21 PM	

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Action Plan: Final Attempt to complete initial contact

6/19

430-630pm est

Tonie Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/19/2009 11:34:16 AM	MERCADTO	MERCADTO	Outbound Call Customer	Left Message	Done	6/19/2009 11:36:16 AM	
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Crs Adv: This is Tonie Mercado calling from the GM Product Allegation Dept. I have received your file and do require further information. Please give me a call when you get a chance. Provided contact info and SR

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 05:16:44 PM	MERCADTO	MERCADTO	Scheduled Outbound Call Cust	Follow-up Attempt	Done	6/19/2009 11:58:46 AM	
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Action Plan: 2nd attempt to complete initial contact

6/19
12-2pm est

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 05:14:24 PM	MERCADTO	MERCADTO	Outbound Call Customer	Left Message	Done	6/18/2009 05:16:27 PM	
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

See Ack

Tonie Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 03:35:55 PM	MERCADTO	MERCADTO	Ownership Changed	Ownership Escalated to BRC	Done	6/18/2009 03:35:55 PM	Ownership Escalated to BRC

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:25:55 PM	KINZERTH	MERCADTO	Ownership Changed		Done	6/18/2009 02:25:55 PM	Service Request Ownership has changed FROM: LACHICJO TO: MERCADTO

Contact Last Name	Contact First Name	Account	BAC Code

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:25:36 PM	KINZERTH	MERCADTO	BRC PAR	Initial Contact- AVM	Done	6/18/2009 03:48:09 PM	Called Giller Virginia 80509 58625

Contact Last Name	Contact First Name	Account	BAC Code

Comments

DVM Name: Virginia Giller
Node/Mailbox: 80509-58625

This is Tonie Mercado

calling from the GM Product Allegation Dept to make you aware of a file that was received in your area.

The request number is: 71-733615161

The Customer's name is:

The dealer involved is: n/a

Located in: n/a

The vehicle is a: 2007 Chevy Cobalt

With current mileage: unknown

The last 8 digits of the VIN# are: 77

This involves: customer was in a collision and she is concerned that the air bags didn't deploy. The occupants in the vehicle did sustain injuries that were treated by a medical professional therefore we will be forwarding this file to our central claims ESIS office for further handling.

This message is for informational purposes only. However if you do have any questions please feel free to give me a call.

Provided contact info.

Tonie Mercado/PA/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:25:26 PM	KINZERTH	MERCADTO	BRC PAR	Initial Contact- Dealer	Done	6/18/2009 03:43:04 PM	Not required
Contact Last Name	Contact First Name		Account		BAC Code		

Comments

No dlr visit in the last 2 yrs.

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:25:16 PM	KINZERTH	MERCADTO	BRC PAR	Initial Contact- 10 Day Letter	Done	6/18/2009 04:32:10 PM	10 Day
Contact Last Name	Contact First Name		Account		BAC Code		

Comments

Attempted to reach customer

6/18 516pm est

6/19 1130am est and 430pm est

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:25:08 PM	KINZERTH	MERCADTO	BRC PAR	Acknowledgement	Done	6/18/2009 05:16:15 PM	Called
Contact Last Name	Contact First Name		Account		BAC Code		

Comments

Crs Adv: This is Tonie Mercado calling from the GM Product Allegation Dept. I have received your file and do require further information. Please give me a call when you get a chance. Provided contact info and SR

Tonie Mercado/PAR/ATX

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:24:59 PM	KINZERTH	MERCADTO	Notify CRM		Done	6/18/2009 05:17:36 PM	File Assigned
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:24:50 PM	KINZERTH	MERCADTO	Research		Done	6/18/2009 03:36:30 PM	Research VIN
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

No open recalls
No prev related claim history
No other files

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:23:52 PM	KINZERTH	MERCADTO	BRC PAR	Case Assigned	Done	6/18/2009 03:29:19 PM	Assigned to Tonie Mercado x41183
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Received

Tonie Mercado/PAR/ATX

Confidential Comments

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/18/2009 02:23:39 PM	KINZERTH	LACHICJO	SR Opened		Done	6/18/2009 02:23:39 PM	SR in Status of Closed has been Re-Opened by KINZERTH
Contact Last Name		Contact First Name		Account		BAC Code	

Comments

Confidential Comments

Service Request Detail

Activities

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/16/2009 02:23:37 PM	KINZERTH	LACHICJO	SR Closed - Satisfied		Done	6/16/2009 02:23:37 PM	Service Request has been Closed Satisfied.
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							
Confidential Comments							

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/16/2009 11:50:06 AM	LACHICJO	KINZERTH	Escalation	Initiate PAR	Done	6/18/2009 02:23:34 PM	Assigning activity to PAR QUEUE
Contact Last Name		Contact First Name		Account		BAC Code	
Comments							
CRS advised that a person from the PAR Department will contact the customer within 5* business days							
Joe Bakes/CAC/T1/MAN/LVL1							
Confidential Comments							

Created	Created By	Assigned To	Activity Type	Activity Sub-Type	Status	Completed	Description
6/16/2009 11:45:11 AM	LACHICJO	LACHICJO	Inbound Call Customer	Complex Request	Done	6/16/2009 11:50:05 AM	Alleged product allegation--Collision
Contact Last Name	Contact First Name	Account	BAC Code				
Comments							
Cust sts:							
>My son had an accident last June 14 Sunday and the airbag did not deploy.							
>we want to know what GM will do about this							
Cust sks:							
>want to know what GM will do about the accident							
CRS adv:							
>CRS advised customer that their information will be forwarded to the Product Allegation Department within the BRC							
Joe Bakes/CAC/T1/MAN/LVL1							
Confidential Comments							

UCC Information

UCC Code	Symptom	Description
C46	SIR - Did Not Deploy	Restraints - (SIR) - Driver Front
C48	SIR - Did Not Deploy	Restraints - (SIR) - Passenger Front

GM Vehicle Inquiry System Summary

Home - Summary - Claim History - Vehicle Build - Vehicle Component - Delivery Information - Dealer Information -
Service Contract - Warranty Block - Branded Title

[Help](#)

VIN :	1G1AK55F577
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VEHICLE INFORMATION

Merchandising Model :	1AK69 -2007 COBALT 4-DOOR LS SEDAN	Warranty Start Date :	05/28/2007				
BARS Order Type :	70 - RETAIL - STOCK						
Delivering Dealer :	GEORGE CHEVROLET 17000 LAKEWOOD BLVD BELLFLOWER , CA 90706-5594 (562) 925-2500	Selling Source :	13 - CHEVROLET				
		Site Code :	20178				
		Business Associate Code :	114562				
Service Contract :	Yes	Branded Title :	No	Warranty Block :	No	PDI Status :	Paid

REQUIRED FIELD ACTIONS

Vehicle Has No Current Record Of Outstanding Campaigns
--

SERVICE INFORMATIONAL ITEMS

Type	Number	Description	Posted Date	Status
EI	09110	SIR/AIRBAG LIGHT ILLUMINATED, DTC B0081 SET(REF. TSB 09-09-41-003)	05/05/2009	See Bulletin

ON STAR AND XM SATELLITE RADIO INFORMATION

Vehicle Has No Associated On Star or XM Radio Information.
--

APPLICABLE WARRANTIES

Description	Effective Date	Effective Odometer	End Date	End Odometer
36/36000 BUMPER TO BUMPER LIMITED WARRANTY	05/28/2007	7 miles	05/28/2010	36007 miles
72/100000 SHEET METAL COVERAGE RUST THROUGH LIMITED WARRANTY	05/28/2007	7 miles	05/28/2013	100007 miles
96/80000 FEDERAL EMISSION CATALYTIC CONV. AND PCM	05/28/2007	7 miles	05/28/2015	80007 miles
60/100000 POWERTRAIN COVERAGE LIMITED WARRANTY	05/28/2007	7 miles	05/28/2012	100007 miles
180/150000 CALIFORNIA EMISSIONS	05/28/2007	7 miles	05/28/2022	150007 miles

<http://198.208.187.167/gmvis/main/Summary?languageSelected=EN&VIN=1G1AK55F57...> 6/23/2009

180/150000 CALIFORNIA SELECT COMPONENT	05/28/2007	7 miles	05/28/2022	150007 miles
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CLAIM HISTORY

R.O Date	R.O Number	Type	Labor Operation	Odometer Reading
12/11/2006	A35089	I	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME	0 miles

CHECK HISTORY INFORMATION

Vehicle Has No Associated Check History Information.
--

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GM Vehicle Inquiry System

Claim History

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VIN :	1G1AK55F577
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CLAIM HISTORY

Repair Order Date :		12/11/2006		Repair Order Number :		A35089		Odometer Reading :		0 miles	
Serviced By :		GEORGE CHEVROLET 17000 LAKEWOOD BLVD BELLFLOWER, CA 90706-5594 (562) 925-2500				Selling Source :		13 - CHEVROLET			
						Site Code :		20178			
						Business Associate Code :		114562			
Cycle Date	Cycle Nbr	Case	Type	Labor Operation		Part	Auth Code	Person Code	Line Total	Comments	
12/15/2006	752	01	1	Z7000 - PRE-DELIVERY INSPECTION - BASE TIME		N/A	N/A	N/A	\$ 101.44	N	

CHECK HISTORY

Vehicle Has No Associated Check History.
--

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GM Vehicle Inquiry System Vehicle Build

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VIN	1G1AK55F577
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VEHICLE BUILD

Merchandising Model :	1AK69 -2007 COBALT 4-DOOR LS SEDAN		
Gross Vehicle Weight Rating :	1707 kg (3764 lb)	Order Number :	KPFM13
Build Date :	12/11/2006	Build Plant :	177A

GMVIS is not the definitive source of GM Vehicle RPO information and is intended for service reference only. Should there be any questions about the vehicle's original build or RPO information please refer to the original vehicle invoice or window sticker.

OPTION CODES

AK5 - DRIVER & RIGHT FRONT PASSENGER AIR BAGS	AL0 - SENSOR INDICATOR INFLATABLE RESTRAINT, FRT PASS/CHILD PRESENCE DETECTOR
AR9 - DELUXE FRONT BUCKET SEAT	AT8 - RESTRAINT PROVISIONS CHILD, RR SEAT, RR FACING
B34 - FLOOR MATS, FRONT/REAR	B35 - REAR FLOOR MATS
B84 - BODY COLOR, BODYSIDE MOLDINGS	C67 - ELECT. FRONT AIR CONDITIONER
DC8 - MIRROR, O/S MANUAL FLDG, BLK	DS1 - DIPLOMATIC SALES
D36 - MIRROR I/S R/V TILT	FE1 - SUSPENSION SYSTEM-SOFT RIDE
FY1 - TRANS/AXLE 3.63 RATIO	IPB - INTERIOR TRIM DESIGN
J41 - BRAKE, FRONT DISC/REAR DRUM	K64 - 115 AMP GENERATOR
LOD - ASSEMBLY PLANT - LORDSTOWN, OHIO	L61 - ENGINE, 2.2L DOHC 4V ECOTEC
MN5 - 4 SPEED AUTO TRANSMISSION	MX0 - TRANSMISSION, 4 SPD AUTOMATIC
NU6 - EMISSION SYSTEM CALIFORNIA, PZEV	N45 - 3 SPOKE STEERING WHEEL
PCI - PROTECTION PACKAGE *FLOOR MATS, FRONT/REAR *BODY COLOR, BODYSIDE MOLDINGS	PG1 - 15" STEEL WHEEL
QTU - P195/60R15 TOURING BW TIRES	R6K
R6P - PREMIUM PAINT	R9N - HEATED LEATHER APPOINTED FRONT BUCKET SEATS
R9X - XM TRACKING CODE	SLM - STOCK ORDERS
UQ4 - BASE SPEAKER SYSTEM	U1C - AM/FM STEREO, CD PLAYER

<http://198.208.187.167/gmvis/main/VehicleBuild?languageSelected=EN&VIN=1G1AK55...> 6/23/2009

VK3 - FRONT LICENSE PLATE BRACKET	VT7 - OWNERS MANUAL ENGLISH
V73 - STATEMENT OF VEHICLE CERT.- U.S. /CANADA	YF5 - CALIFORNIA EMISSIONS
1LS - 1LS BASE PACKAGE	1SZ - OPTION PACKAGE DISCOUNT
14B - GRAY	14I - GRAY
6AR - FRONT SPRING	7AR - FRONT SPRING
8AA - REAR SPRING	9AA - REAR SPRING
95U - ULTRA SILVER METALLIC	

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